SUPREME COURT OF THE UNITED STATES

No. 25A1197 (24–109 and 24–110)

PHILLIP CALLAIS, ET AL., APPLICANTS *v.*
LOUISIANA, ET AL.

ON APPLICATION TO ISSUE THE JUDGMENT FORTHWITH

[May 4, 2026]

To permit the losing party time to file a petition for rehearing, the Clerk of Court ordinarily waits 32 days after the entry of the Court's judgment to send the opinion and a certified copy of the judgment to the clerk of the lower court. Sup. Ct. Rule 45.3. This period is subject to adjustment; the default applies "unless the Court or a Justice shortens or extends the time." *Ibid.* The Callais appellees have asked for the Clerk to issue the judgment forthwith so that "in the event of a judicial remedy," the District Court may "oversee an orderly process." App. 3. Appellant Louisiana does not oppose this application. And while the Robinson appellants oppose it, they have not expressed any intent to ask this Court to reconsider its judgment. Thus, the application to issue the judgment forthwith presented to JUSTICE ALITO and by him referred to the Court is granted.

JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, concurring.

The dissent in this suit levels charges that cannot go unanswered. The dissent would require that the 2026 congressional elections in Louisiana be held under a map that has been held to be unconstitutional.* The dissent does not claim that it is now too late for the state legislature or the District Court to adopt a new map that complies with the

*That constitutional question was argued and conferenced nearly seven months ago.

Constitution. Nor does the dissent assert that it is not feasible for the elections to be held under such a map. Instead, the dissent offers two reasons for its proposed course of action. One is trivial at best, and the other is baseless and insulting.

The first is compliance with the 32-day default rule set out in this Court's Rule 45.3, but as the Court's order explains, there is good reason to depart from the default rule here. The principal reason for the 32-day default rule is to give a losing party time to prepare a petition for rehearing. But here, the Robinson appellees have not expressed an intent to file such a petition, much less set out any ground on which a petition might be based. And the need for prompt action by this Court is clear. The date scheduled for the beginning of early voting in the primary election has already passed. The congressional districting map enacted by the legislature has been held to be unconstitutional, and the general election will be held in just six months.

The second reason offered by the dissent is that we should allow the 32-day period to run out in order to "avoid the appearance of partiality." *Post*, at 3 (opinion of JACKSON, J.). But the dissent does not explain why its insistence on unthinking compliance with Rule 45.3's default rule does not create the appearance of partiality (by running out the clock) on behalf of those who may find it politically advantageous to have the election occur under the unconstitutional map.

The dissent goes on to claim that our decision represents an unprincipled use of power. See *post*, at 4 ("And just like that, those principles give way to power"). That is a groundless and utterly irresponsible charge. What principle has the Court violated? The principle that Rule 45.3's 32-day default period should never be shortened even when there is good reason to do so? The principle that we should never take any action that might unjustifiably be criticized as partisan?

The dissent accuses the Court of "unshackl[ing]" itself from "constraints." *Post*, at 4. It is the dissent's rhetoric that lacks restraint.

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JUSTICE JACKSON, dissenting.

The Court's decision in these cases has spawned chaos in the State of Louisiana.

Louisiana's primary elections were scheduled to take place on May 16, 2026. Accordingly, the State mailed ballots to overseas and military voters on April 1, and to other voters who qualified to vote by mail on April 26. By April 29—the date on which the Court released its decision holding that Louisiana's current congressional map is an unconstitutional gerrymander, see *Louisiana* v. *Callais*, 608 U. S. ___ (2026)—some Louisiana voters had already mailed back their filled-in ballots.

The very next day, Louisiana's Governor declared that *Callais* "effectively revives" the lower court's prior injunction against the current electoral map, and suspended the ongoing primary elections for seats in the U. S. House of Representatives. La. Exec. Order No. JML 26–038 (Apr. 30, 2026). For its part, the three-judge court below declared that, due to *Callais*, "Louisiana will be afforded the opportunity to enact a Constitutionally compliant map" right now—for the election in progress—and ordered the State to file a brief "outlining how [it] intends to comply with" the *Callais* decision within three days. Order in *Callais* v. *Landry*, No. 24–cv–122 (WD La.), ECF Doc. 261, p. 1. Apparently, neither the Governor nor the three-judge court viewed themselves as limited by the fact that this Court had